

THE GAZETTE OF INDIA

EXTRAORDINARY

PART –III – SECTION 4

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SECURITIES AND EXCHANGE BOARD OF INDIA

NOTIFICATION

Mumbai, the 7th January, 2013

SECURITIES AND EXCHANGE BOARD OF INDIA (SELF REGULATORY ORGANIZATIONS) (AMENDMENT) REGULATIONS, 2013.

No. LAD-NRO/GN/2012-12/27/5469 In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to amend the Securities and Exchange Board of India (Self Regulatory Organizations) Regulations, 2004, namely:-

1. These regulations may be called the Securities and Exchange Board of India (Self Regulatory Organizations) (Amendment) Regulations, 2013.
2. They shall come into force on the date of their notification in the Gazette of India.
3. In the Securities and Exchange Board of India (Self Regulatory Organizations) Regulations, 2004,—

- i. In regulation 1, in sub-regulation (2), -
 - a. in the proviso, the symbol "." shall be substituted with the symbol ":" ;
 - b. after the proviso, the following new proviso shall be inserted, namely-

“Provided further that the provisions of these regulations shall come into force in relation to different classes of intermediaries on such dates as the Board may by notification in the Official Gazette appoint.”

- ii. In regulation 2, in sub-regulation (1),-
- a. after clause (e), the following new clause shall be inserted, namely,-
“(ea) “distributor” means distributor as defined in clause (g) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Certification of Associated Persons in the Securities Markets) Regulations, 2007;”
 - b. clause (h), shall be substituted with the following, namely,-
“(h) “intermediary” means intermediary as defined in clause (g) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Intermediaries) Regulations, 2008;”
 - c. after clause (h), the following new clause shall be inserted, namely,-
“(ha) “issuer” means issuer as defined in clause (i) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Certification of Associated Persons in the Securities Markets) Regulations, 2007;”
- iii. In regulation 3, in sub-regulation (1), the following proviso shall be inserted, namely,-
"Provided that for the purpose of this sub-regulation a distributor shall be deemed to be an intermediary."

U. K. SINHA
CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

The SEBI (Self Regulatory Organizations) Regulations, 2004, were published in the Gazette of India on 19th February, 2004 vide F.No. SEBI/LAD/DOP/3348/2004.